



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Kostiantyn Mars vs Hanna Mars

22FL003144

Date of Hearing: 11/13/2023

Hearing Start Time: 9:00 AM

Hearing Type: Request for Order: Other
w/fee

Comments:

Heard By: Flint, Andrea E
Courtroom Reporter: Marylou Gutierrez

Location: Department 79
Courtroom Clerk: True Parker
Court Interpreter:
Court Investigator:

Parties Present:

Mars, Hanna
Mars, Kostiantyn
Roberts, Nancy Lee

Respondent
Petitioner
Attorney
Limited Scope
Attorney

Future Hearings:

February 05, 2024 9:00 AM Court Trial: Long Cause
Flint, Andrea E
Department 79

Exhibits:

Case is called on the record.

All above listed parties appear via MS Teams.

Respondent is assisted by certified Russian interpreter, Mariya Rekretiyuk; interpreter is personally present.

Petitioner and respondent are sworn.

Hearing held re: division of stock.

Any community portion of the stock is ordered to be equally divided.

Parties are ordered to meet and confer to see if there can be agreement on the issue of which portion of the stock is community property.

If parties cannot reach agreement, parties are ordered to hire an expert accountant to determine the community's interest in the stock.

Parties are to meet and confer within 7 days of the Court's order. If parties cannot reach agreement, parties are ordered to hire an expert to determine the community share. An expert is ordered to be hired within 45 days of the Court's order.

If an expert is needed for the division of community assets, parties are ordered to share the cost equally.

Once the amount is determined, the community amount to be paid within 30 days of the determination of the community amount.



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

Hearing held re: bank accounts.

Respondent's Exhibit G-Copy of Chase bank statement account ending in #5068 is virtually marked and admitted into evidence. (Over petitioner's objection)

Respondent's Exhibit K-Copy of Bank of America statement account ending in #5549 is virtually marked and admitted into evidence. (Over petitioner's objection)

Respondent's Exhibit H-Copy of Bank of America statement account ending in #8829 is virtually marked and admitted into evidence.

Respondent's Exhibit I-Copy of Chase bank statement account ending in #0218 is virtually marked and admitted into evidence.

Respondent's Exhibit J-Copy of Chase bank statement account ending in #1619 is virtually marked and admitted into evidence. (Over petitioner's objection)

The Court grants attorney Nancy Roberts' request that each party keep the accounts held in their name alone.

Mr. Mars will pay an equalizing payment to Ms. Mars for the community money in the bank accounts in the amount of \$6,895.52.

The Court orders the \$6,895.52 amount be paid within 45 days of today.

Hearing held re: debts.

Respondent's Exhibit M-Copy of Bank of America credit card statement ending in #7126 is virtually marked and admitted into evidence.

Respondent's Exhibit N-Copy of Freedom Chase credit card statement ending in #7126 is virtually marked and admitted into evidence. (Over petitioner's objection)

Respondent's Exhibit O-Copy of Apple card statement is virtually marked and admitted into evidence. (Over petitioner's objection)

Respondent's Exhibit P-Copy of Capital One Walmart credit card statement ending in #1114 is virtually marked and admitted into evidence.

Respondent's Exhibit Q-Copy of Apple card statement for Hanna Mars is virtually marked and admitted into evidence.

The Court denies the request to repay Mr. Mars \$37,405.21 towards the auto loan towards the Hyundai, reasons as stated for the record.

The Court grants respondent's request with regards to each of the community debts.

The Court finds the evidence that was presented as to each of those credit card debts clearly shows the debt occurred on the day of separation or prior to the date of separation. In addition, the Court add the \$49.00 on American Express community property debt. The Court orders Ms. Mars pay the \$1,676.91 to Mr. Mars. Respondent is ordered to pay half of the American Express debt. Total payment Ms. Mars to Mr. Mars is \$1,701.41.



**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

MINUTE ORDER

The Court finds there is insufficient reason to believe that each of the debts listed by Mr. Mars occurred on day of separation or date of separation. Based on the information provided on this date of trial, the Court denies the remainder of the debt requested by Mr. Mars.

The Court sets a trial date for remaining issues: permanent spousal support, child custody, marital status, respondent's request for attorney's fees, and petitioner's request for attorney's fees.

Trial is set for 02-05-2024 at 9:00 am in department 79.

Time Estimate: 1 day

2 Russian interpreters have been requested for trial date of 02-05-2024.

Attorney Nancy Roberts to prepare the order after hearing.
